

Pro Se 15 (Rev. 12/16) Complaint for Violation of Civil Rights (Non-Prisoner)

UNITED STATES DISTRICT COURT

for the

Middle District of Florida

__Tampa__ Division

DAVIS, MATTHEW A.

Case No. 8:24-cv-02907

(to be filled in by the Clerk's Office)

Plaintiff(s)

(Write the full name of each plaintiff who is filing this complaint. If the names of all the plaintiffs cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names.)

-v-

STATE ATTORNEY OF PASCO COUNTY

Defendant(s)

(Write the full name of each defendant who is being sued. If the names of all the defendants cannot fit in the space above, please write "see attached" in the space and attach an additional page with the full list of names. Do not include addresses here.)

Jury Trial: (check one) ☒ Yes ☐ No

COMPLAINT FOR VIOLATION OF CIVIL RIGHTS (Non-Prisoner Complaint)

NOTICE

Federal Rules of Civil Procedure 5.2 addresses the privacy and security concerns resulting from public access to electronic court files. Under this rule, papers filed with the court should *not* contain: an individual's full social security number or full birth date; the full name of a person known to be a minor; or a complete financial account number. A filing may include *only*: the last four digits of a social security number; the year of an individual's birth; a minor's initials; and the last four digits of a financial account number.

Except as noted in this form, plaintiff need not send exhibits, affidavits, grievance or witness statements, or any other materials to the Clerk's Office with this complaint.

In order for your complaint to be filed, it must be accompanied by the filing fee or an application to proceed in forma pauperis.

I. The Parties to This Complaint**A. The Plaintiff(s)**

Provide the information below for each plaintiff named in the complaint. Attach additional pages if needed.

Name	Matthew Aaron Davis		
Address	4538 Charter St		
	Zephyrhills	FL	33542
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County	Pasco		
Telephone Number	656-212-3599		
E-Mail Address	DavisMatthewA2024@gmail.com		

B. The Defendant(s)

Provide the information below for each defendant named in the complaint, whether the defendant is an individual, a government agency, an organization, or a corporation. For an individual defendant, include the person's job or title (if known) and check whether you are bringing this complaint against them in their individual capacity or official capacity, or both. Attach additional pages if needed.

Defendant No. 1

Name	State Attorney Office		
Job or Title <i>(if known)</i>			
Address	38050 Live Oak Ave		
	Dade City	FL	33525
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County	Pasco		
Telephone Number			
E-Mail Address <i>(if known)</i>			
☐ Individual capacity ☐ Official capacity			

Defendant No. 2

Name			
Job or Title <i>(if known)</i>			
Address			
	<i>City</i>	<i>State</i>	<i>Zip Code</i>
County			
Telephone Number			
E-Mail Address <i>(if known)</i>			
☐ Individual capacity ☐ Official capacity			

Defendant No. 3

Name

Job or Title (*if known*)

Address

City

State

Zip Code

County

Telephone Number

E-Mail Address (*if known*)☐

Individual capacity

☐

Official capacity

Defendant No. 4

Name

Job or Title (*if known*)

Address

City

State

Zip Code

County

Telephone Number

E-Mail Address (*if known*)☐

Individual capacity

☐

Official capacity

II. Basis for Jurisdiction

Under 42 U.S.C. § 1983, you may sue state or local officials for the “deprivation of any rights, privileges, or immunities secured by the Constitution and [federal laws].” Under *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 403 U.S. 388 (1971), you may sue federal officials for the violation of certain constitutional rights.

A. Are you bringing suit against (*check all that apply*):

☐Federal officials (a *Bivens* claim)☒

State or local officials (a § 1983 claim)

B. Section 1983 allows claims alleging the “deprivation of any rights, privileges, or immunities secured by the Constitution and [federal laws].” 42 U.S.C. § 1983. If you are suing under section 1983, what federal constitutional or statutory right(s) do you claim is/are being violated by state or local officials?
Right to due process under the Fourth, Eighth and Fourteenth Amendment.

C. Plaintiffs suing under *Bivens* may only recover for the violation of certain constitutional rights. If you are suing under *Bivens*, what constitutional right(s) do you claim is/are being violated by federal officials?

- D. Section 1983 allows defendants to be found liable only when they have acted “under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia.” 42 U.S.C. § 1983. If you are suing under section 1983, explain how each defendant acted under color of state or local law. If you are suing under *Bivens*, explain how each defendant acted under color of federal law. Attach additional pages if needed.

The State Attorney and their office acted under color of law by prosecuting the criminal cases against you, utilizing their official powers to initiate and pursue charges, even if done maliciously or without probable cause. Their actions directly impacted your constitutional rights to due process and fair legal proceedings.



III. Statement of Claim

State as briefly as possible the facts of your case. Describe how each defendant was personally involved in the alleged wrongful action, along with the dates and locations of all relevant events. You may wish to include further details such as the names of other persons involved in the events giving rise to your claims. Do not cite any cases or statutes. If more than one claim is asserted, number each claim and write a short and plain statement of each claim in a separate paragraph. Attach additional pages if needed.

- A. Where did the events giving rise to your claim(s) occur?
- Their actions, conducted at the Robert D. Sumner Judicial Center in Dade City, Florida, violated my right to due process and a fair trial.
- B. What date and approximate time did the events giving rise to your claim(s) occur?
- The issues involving the State Attorney's Office began on March 9, 2021, with my arrest for burglary, fraud and dealing in stolen property. For the reason of a investigation and a second arrest on July 30 2021 to incarcerate continuing until April 12, 2023, when I was coerced into a plea deal under the threat of indefinite incarceration. The events spanned this approximate two-year period.
- C. What are the facts underlying your claim(s)? (*For example: What happened to you? Who did what? Was anyone else involved? Who else saw what happened?*)
- The State Attorney's Office of Pasco County was directly involved in pursuing criminal charges against me without probable cause, beginning on March 9, 2021, when I was arrested for burglary, fraud, and dealing in stolen property. Despite my bond and requests for a trial, the State Attorney placed me under investigation concurrent with my child custody case, causing significant personal, financial, and emotional harm. I was arrested a second time while under investigation on blatantly false charges of aggravated assault two counts for the purpose of incarceration only on July 30 2022. They failed to drop charges even after my innocence was evident and coerced me into a plea deal on April 12, 2023, under threat of indefinite incarceration.

IV. Injuries

If you sustained injuries related to the events alleged above, describe your injuries and state what medical treatment, if any, you required and did or did not receive.

I sustained two gunshot wounds and three broken ribs during the second arrest incident and was bay flighted to Hudson hospital and received little to no medical attention after the medical professionals talk to the police officer. received 20 ibuprofen 1000mg pills while incarcerated.

V. Relief

State briefly what you want the court to do for you. Make no legal arguments. Do not cite any cases or statutes. If requesting money damages, include the amounts of any actual damages and/or punitive damages claimed for the acts alleged. Explain the basis for these claims.

Compensatory Damages: \$10,000,000 for personal, emotional, and financial harm caused by the prolonged investigation, loss of custody of my children, coerced plea deal, and damage to my reputation.

2. Punitive Damages: \$10,000,000 to punish the State Attorney's Office for their malicious actions and deter similar behavior in the future.

3. Injunctive Relief: An order requiring the State Attorney's Office to cease unlawful practices and to investigate the handling of my case to prevent future violations.

4. Restoration of Custody: Immediate action to facilitate the return of my children, who were wrongfully removed and placed into state care.

5. Arrest record expunged of all charges in question due to their fabrication.

VI. Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

A. For Parties Without an Attorney

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: 01/09/2025

Signature of Plaintiff /s/ Matthew Aaron Davis

Printed Name of Plaintiff Matthew Aaron Davis

B. For Attorneys

Date of signing:

Signature of Attorney

Printed Name of Attorney

Bar Number

Name of Law Firm

Address

State

Zip Code

Telephone Number

E-mail Address